

CHAPTER 50

Auxiliary Forces Act, 1953

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Power to maintain the Territorial Army and the Royal Auxiliary Air Force; and numbers and area of service thereof

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An Act to consolidate certain enactments and Orders in Council relating to the Territorial Army and the Royal Auxiliary Air Force with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949.

[29th October 1953.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to maintain the Territorial Army and the Royal Auxiliary Air Force; and numbers and area of service thereof

Power to maintain, numbers and area of service.

1.—(1) It shall be lawful for Her Majesty to maintain the Territorial Army and the Royal Auxiliary Air Force.

(2) The Territorial Army and the Royal Auxiliary Air Force shall each consist of such number of officers, warrant officers, non-commissioned officers and men as may from time to time be provided by Parliament.

(3) Officers and men of the Territorial Army and of the Royal Auxiliary Air Force shall be liable to serve in any part of the United Kingdom or the Channel Islands, and, in so far as is hereinafter provided, elsewhere.

Administration

2.—(1) In this Act—

Administering
associations.

the expression “joint association” means an association established for any area in the United Kingdom, being an area consisting of one or more counties, for the purposes of the organisation and administration of Her Majesty’s military and air forces other than the regulars and their reserves and for such other purposes of the establishment of associations as are mentioned in this Act ;

the expression “territorial army association” means an association established for any such area for the like purposes in relation to Her Majesty’s military forces ;

the expression “auxiliary air force association” means an association established for any such area for the like purposes in relation to Her Majesty’s air forces.

(2) The joint associations in existence at the commencement of this Act (which were established under provision in that behalf of the enactments repealed and orders revoked by this Act, and whose areas together cover the whole of the United Kingdom) shall continue in existence, subject to the next following subsection.

(3) A joint association for any area may be terminated in any case where the Army Council and the Air Council agree.

(4) Upon the termination of a joint association the Army Council and the Air Council shall make a joint order for the winding up of the association, and the joint order shall provide for any matter incidental to or consequential on the winding up, whether as respects the transfer of property, rights and liabilities, financial adjustment or otherwise, as the Army Council and the Air Council may think necessary.

(5) An association of any of the kinds mentioned in subsection (1) of this section may be established for any such area as is mentioned in that subsection for which an association of that kind is not for the time being in existence, being in the case of an auxiliary air force association an area which in the opinion of the Air Council cannot suitably be administered through a joint association.

(6) The scheme under the next succeeding section whereby a joint association is established for any area shall provide for the winding up, as from the date of the establishment of the joint

association, of any territorial army association or auxiliary air force association previously established for that area, and for any matter incidental to or consequential on the winding up, whether as respects the transfer of property, rights and liabilities, financial adjustment or otherwise, as the Army Council and the Air Council may think necessary.

Constitution of associations.

3. Such an association as is mentioned in the last foregoing section shall be constituted, and the members thereof shall be appointed and hold office, in accordance with a scheme as to which the provisions of the First Schedule to this Act shall have effect, being a scheme made—

- (a) in the case of a joint association, by the Army Council and the Air Council jointly ;
- (b) in the case of a territorial army association, by the Army Council ;
- (c) in the case of an auxiliary air force association, by the Air Council.

Application to associations of sections five to nine.

4. The provisions of the five next following sections shall apply, save as otherwise therein expressly provided, to all such associations as are mentioned in section two of this Act, but with the following modifications in their application to an association other than a joint association, that is to say—

- (a) in their application to a territorial army association they shall be read with the omission of all references to Her Majesty's air forces, and also of references to the Royal Auxiliary Air Force, the Air Council, air force authorities, air force resources and capabilities, actual air force service, the Air Training Corps, aviation clubs, and aerodromes, landing grounds and hangars ;
- (b) in their application to an auxiliary air force association they shall be read with the omission of all references to Her Majesty's military forces, and also of references to the Territorial Army, the Army Council, military authorities, military resources and capabilities, actual military service, and the Army Cadet Force.

General duties of associations.

5.—(1) It shall be the duty of each association to make itself acquainted with and conform to the plan of the Army Council for the organisation of all Her Majesty's military forces within the area for which the association is established and of the Air Council for the organisation of all Her Majesty's air forces within that area.

(2) It shall be the duty of each association to ascertain the military and air force resources and capabilities of the area for which the association is established and to render advice and assistance to the Army Council and the Air Council and to such officers as those Councils respectively may direct.

(3) It shall be the duty of each association to make itself acquainted with and conform to the plan of the Admiralty for the organisation within the area for which the association is established of the reserves of the Royal Navy and of the reserves of the Royal Marines in so far as that plan relates to matters with respect to which functions are conferred on the association under subsection (1) of the next following section.

6.—(1) An association shall have, exercise and discharge such powers and duties connected with the organisation and administration of Her Majesty's military and air forces as may for the time being be transferred or assigned to it by order of Her Majesty signified under the hand of a Secretary of State or, subject thereto, by regulations under this Act, and also such powers and duties as may be transferred or assigned to it as aforesaid connected with the organisation and administration of—

Powers and
duties
assignable to
associations.

- (a) the reserves of the Royal Navy and the reserves of the Royal Marines ; or
- (b) the Army Cadet Force, the Air Training Corps, the Combined Cadet Force and the Sea Cadet Corps ;

but an association shall not have any powers of command or training over any part of Her Majesty's forces.

(2) The powers and duties so transferred or assigned to an association may include any powers conferred on or vested in Her Majesty, and any powers or duties conferred or imposed on the Army Council or the Air Council or a Secretary of State, by statute or otherwise, and in particular respecting the following matters :—

- (a) the organisation of the units of the Territorial Army and the Royal Auxiliary Air Force and their administration (including maintenance) at all times other than when they are called out for training or actual military or air force service, or when embodied ;
- (b) the recruiting for the Territorial Army and the Royal Auxiliary Air Force both in peace and in war, and defining the limits of recruiting areas ;
- (c) the provision and maintenance of rifle ranges, buildings, magazines, sites of camps, aerodromes, landing grounds and hangars for the Territorial Army and the Royal Auxiliary Air Force ;
- (d) facilitating the provision of areas to be used for manœuvres ;
- (e) arranging with employers of labour as to holidays for training, and ascertaining, after consultation with the representatives of employers in and of persons employed in the principal industries of the area for

which the association is established, the times of training which having regard to those industries are best suited to the circumstances of civil life ;

- (f) establishing or assisting cadet units and also rifle and aviation clubs ;
- (g) the provision of mechanical transport and horses for the peace requirements of the Territorial Army and the Royal Auxiliary Air Force ;
- (h) providing accommodation for the safe custody of arms and equipment ;
- (i) the supply of the requirements on mobilisation of the units of the Territorial Army and the Royal Auxiliary Air Force within the area for which the association is established in so far as those requirements are directed by the Army Council and the Air Council respectively to be met locally ;
- (j) the registration in conjunction with the military and air force authorities of vehicles, horses, stores and equipment for any of Her Majesty's military or air forces (or, in the case of a territorial army association, any of Her Majesty's forces) ;
- (k) the welfare of members and former members of Her Majesty's military and air forces and of members and former members of the reserves of the Royal Navy and of the reserves of the Royal Marines ;
- (l) in the case of a joint association and of an auxiliary air force association, the undertaking in relation to the air force reserve of any functions undertaken in relation to the Royal Auxiliary Air Force.

For the purposes of paragraph (i) of this subsection the Army Council and Air Council shall from time to time make and issue to associations regulations specifying, so far as practicable, the requirements mentioned in that paragraph which are to be met locally.

(3) The members of an association shall not be under any pecuniary liability for any act done by them in their capacity as members of the association in carrying out the provisions of this Act.

Expenses of
associations.

7.—(1) Each of the Service Authorities shall pay to an association, out of moneys provided by Parliament, such sums as in the opinion of that Authority are required to meet the necessary expenditure incurred by the association in connection with the exercise and discharge of powers and duties relating to matters under the control of that Authority.

(2) Where any expenditure of an association is incurred partly in respect of matters under the control of one of the Service Authorities and partly in respect of matters under the control of another, the Authorities concerned shall make any apportionment necessary for the purposes of this section.

(3) An association—

(a) shall annually at the prescribed time, and

(b) may at any other time for any special purpose,

submit in the prescribed form and manner a statement of its necessary requirements, so far as they relate to its functions in relation to matters under the control of any of the Service Authorities, to that Authority; and all payments under this section to an association shall be made upon the basis of such a statement, so far as approved by the Authority to whom it was submitted.

(4) Subject to regulations under this Act, any money paid to an association by a Service Authority shall be applicable to any of the purposes specified in the approved statements in accordance with which money has been granted and, except with the written consent of the Service Authority by whom it was paid, shall not be applicable otherwise:

Provided that nothing in this section shall be construed as enabling a Service Authority to give their consent to the application of money to any purpose to which, apart from this section, it could not lawfully be applied, or to give their consent without the authority of the Treasury in any case in which, apart from this section, the authority of the Treasury would be required.

(5) All money received by an association otherwise than from a Service Authority (except such money, if any, as may be received by the association for specified purposes) shall be available for the purposes of any of the powers and duties of the association:

Provided that, in the case of a joint association, the income from investments representing money originally received for the purpose of the Territorial Army or of the Royal Auxiliary Air Force shall be applied only to that purpose, unless the Army Council and the Air Council otherwise jointly direct.

(6) In this section the expression “the Service Authorities” means the Army Council, the Air Council and the Admiralty.

8.—(1) An association shall cause its accounts to be made up annually and audited in such a manner as may be prescribed. Accounts of associations.

(2) An association shall keep separate accounts of grants made to the association by the Admiralty and the expenditure thereof.

(3) An association shall send copies of its accounts, together with any report of the auditors thereon,—

(a) except in the case of separate accounts kept under the last foregoing subsection—

(i) if it is a joint association, to the Army Council so far as the accounts relate to the Territorial Army and to the Air Council so far as they relate to the Royal Auxiliary Air Force ;

(ii) if it is a territorial army association, to the Army Council ;

(iii) if it is an auxiliary air force association, to the Air Council ;

(b) in the case of separate accounts kept under the last foregoing subsection, to the Admiralty.

Joint
committees of
associations.

9.—(1) Any associations may from time to time join in appointing out of their respective bodies a joint committee for any purpose in respect of which they are jointly interested.

(2) An association joining in appointing a joint committee under this section may delegate to it any power which such an association may exercise for the purpose for which the committee is appointed.

(3) Subject to the terms of delegation a joint committee appointed under this section shall in respect of any matter delegated to it have the same power in all respects as the associations appointing it.

(4) The costs of such joint committee shall be defrayed by the associations by whom it has been appointed in such proportion as may be agreed between them, and the accounts of such joint committees and their officers shall for the purposes of the provisions of this Act be deemed to be accounts of the associations appointing them and of their officers.

Regulations
as to
associations.

10.—(1) Subject to the provisions of this Act, regulations for carrying into effect the provisions of the eight last foregoing sections as respects joint associations may be made by the Army Council and the Air Council jointly, or may be made by them severally as respects matters with which they are respectively concerned, and such regulations may, among other things, provide for the following matters:—

(a) for regulating the manner in which powers are to be exercised and duties performed by such associations, and for specifying the services to which money paid by the Army Council and the Air Council respectively is to be applicable ;

(b) for authorising and regulating the acquisition by or on behalf of such an association of land for the purposes of this Act and the disposal of any land so acquired ;

- (c) for authorising and regulating the borrowing of money by such an association ;
- (d) for authorising the acceptance of any money or other property, and the taking over of any liability, by such an association, and for regulating the administration of any money or property so acquired and the discharge of any liability so taken over ;
- (e) for facilitating the co-operation of such an association with any other association such as is mentioned in section two of this Act or with any local authority or other body, and for providing by the constitution of joint committees or otherwise for co-operative action in the organisation and administration of divisions, brigades and other military bodies and of groups, wings, squadrons and other air force bodies, and for the provision of assistance by one association to another ;
- (f) for affiliating cadet units, rifle and aviation clubs and other bodies to the Territorial Army or to the Royal Auxiliary Air Force or to any part thereof ;
- (g) for or in respect of anything by the foregoing provisions of this Act directed or authorised to be done or provided for by regulations or to be done in the prescribed manner ;
- (h) for the application for the purposes of the foregoing provisions of this Act, as respects any matters to be dealt with by regulations, of any provision in any Act of Parliament dealing with the like matters, with the necessary modifications or adaptations, and in particular of any provisions as to the acquisition of land by or on behalf of volunteer corps.

(2) Subject to the provisions of this Act, regulations for carrying into effect the provisions of the eight last foregoing sections as respects territorial army associations and auxiliary air force associations respectively may be made by the Army Council and the Air Council respectively, and such regulations may, among other things, provide for the matters mentioned in paragraphs (a) to (h) of the foregoing subsection, read with the following modifications, that is to say,

- (a) for references to joint associations there shall be substituted references to territorial army associations or to auxiliary air force associations, as the case may be ;
- (b) as respects territorial army associations there shall be omitted the references to the Air Council, to the Royal Auxiliary Air Force, to groups, wings, squadrons, and other air force bodies, and to aviation clubs ;

- (c) as respects auxiliary air force associations there shall be omitted the references to the Army Council, to the Territorial Army, to divisions, brigades and other military bodies.

(3) All regulations under this section as respects joint, territorial army and auxiliary air force associations respectively shall be applicable to all joint, territorial army and auxiliary air force associations respectively, except in so far as may be otherwise provided by the regulations or by any scheme made under this Act.

(4) All regulations under this section made for the purposes of section seven or of section eight of this Act shall be subject to the consent of the Treasury.

Government, Discipline and Pay

Government,
discipline and
pay.

11.—(1) Subject to the provisions of this Act, it shall be lawful for Her Majesty, by order signified under the hand of a Secretary of State, to make orders with respect to the government, discipline, and pay and allowances of the Territorial Army and of the Royal Auxiliary Air Force, and with respect to all other matters and things relating to the Territorial Army or to the Royal Auxiliary Air Force, including any matter by the following provisions of this Act authorised to be prescribed or expressed to be subject to orders or regulations.

(2) Orders made under this section as respects the Territorial Army may—

- (a) provide for the formation of men of the Territorial Army into regiments, battalions, or other military bodies,
- (b) provide for appointing, transferring or attaching men of the Territorial Army to corps and for posting, attaching, or otherwise dealing with such men within the corps,
- (c) provide for the constitution of a permanent staff, including adjutants and staff sergeants who shall, except in special circumstances certified by the general officer commanding, be members of Her Majesty's regular military forces, and
- (d) regulate the appointment, rank, duties and numbers of the officers, warrant officers and non-commissioned officers of the Territorial Army.

(3) Orders made under this section as respects the Royal Auxiliary Air Force may—

- (a) provide for the formation of men of the Royal Auxiliary Air Force into wings, squadrons or other air force bodies and for the formation of such wings,

squadrons or other air force bodies into higher formations, either alone or jointly with any other part of Her Majesty's air forces,

- (b) provide for posting, transferring, or attaching men of the Royal Auxiliary Air Force to units,
- (c) provide for the constitution of a permanent staff, including adjutants and non-commissioned officers who shall, except in special circumstances certified by the air officer commanding, be members of Her Majesty's regular air force, and
- (d) regulate the appointment, rank, duties and numbers of the officers, warrant officers and non-commissioned officers of the Royal Auxiliary Air Force.

(4) Subject to the provisions of this section and of any order made thereunder—

- (a) the Army Council may make general or special regulations with respect to any matters relating to the Territorial Army, and
- (b) the Air Council may make general or special regulations with respect to any matters relating to the Royal Auxiliary Air Force,

being matters with respect to which Her Majesty may make orders under this section.

(5) Orders or regulations made under this section shall not affect or extend the term for which, or the area within which, a man of the Territorial Army or the Royal Auxiliary Air Force is liable to serve or, except as expressly provided by this Act—

- (a) authorise a man of the Territorial Army (other than a man serving therein for a term of part-time service within the meaning of Part I of the National Service Act, 1948) when belonging to one corps to be transferred, without his consent, to another corps; or
- (b) where the corps of a man of the Territorial Army (other than a man serving therein as aforesaid) includes more than one unit, authorise him when not embodied to be posted, without his consent, to any unit other than that to which he was posted on enlistment; or
- (c) where the corps of a man of the Territorial Army (other than a man serving therein as aforesaid) includes any battalion or other body of the regular forces, authorise him to be posted, without his consent, to that battalion or body; or
- (d) authorise a man of the Royal Auxiliary Air Force when not embodied to be posted, without his consent, to any unit other than that to which he was posted on enlistment; or
- (e) authorise a man of the Royal Auxiliary Air Force to be posted, without his consent, to a unit of the regular air force.

(6) Where a man of the Territorial Army or of the Royal Auxiliary Air Force was enlisted before the date of any order or regulation under this Act, nothing in that order or regulation shall render him liable without his consent to be appointed, transferred, or attached to any military or air force body, as the case may be, to which he could not without his consent have been appointed, transferred or attached if the said order or regulation had not been made.

(7) Orders and regulations under this section may provide for the formation of a reserve division of the Territorial Army or of the Royal Auxiliary Air Force and may relax or dispense with any of the provisions of this Act relating to training so far as regards their application to men in such a reserve division, and may, notwithstanding anything in this section, authorise a man in such a reserve division to be transferred from one corps (in the case of the Territorial Army) or one unit (in the case of the Royal Auxiliary Air Force) to another:

Provided that a man in the reserve division of the Territorial Army shall not, without his consent, be transferred by virtue of this subsection to a corps of another arm except as expressly provided by this Act.

Enlistment, re-engagement and discharge

Procedure for
enlistment.

12.—(1) Subject to the provisions of this Act and of the National Service Act, 1948, all men of the Territorial Army or of the Royal Auxiliary Air Force shall be enlisted by such persons and in such manner and subject to such regulations as may be prescribed.

(2) The provisions of the Army Act and of the Air Force Act specified in the Second Schedule to this Act shall, subject to the modifications therein specified, apply to the Territorial Army and to the Royal Auxiliary Air Force respectively:

Provided that section ninety-six of the Army Act shall not apply to persons serving in the Territorial Army for a term of part-time service within the meaning of Part I of the National Service Act, 1948.

(3) A recruit may be attested by any lieutenant or deputy lieutenant of any county in the United Kingdom, or, in the case of a recruit to the Territorial Army, by an officer of the regular military forces or of the Territorial Army, or, in the case of a recruit to the Royal Auxiliary Air Force, by an officer of the regular air force or of the Royal Auxiliary Air Force, and the sections of the Army Act and of the Air Force Act mentioned in the Second Schedule to this Act and also section thirty-three of each of those Acts shall, as applied to the Territorial Army or to the Royal Auxiliary Air Force, as the case may be, be construed as if references therein to a justice of the peace included references to any such lieutenant, deputy lieutenant or officer.

(4) The attestation paper to be used for the purpose of attesting recruits to the Territorial Army shall be in such form as may be prescribed.

13. Every man enlisted under this Act shall if enlisted into the Territorial Army be enlisted for service in such corps and be posted to such unit in that corps as he may select, or if enlisted into the Royal Auxiliary Air Force be enlisted for service in such unit as he may select. Conditions of enlistment.

14.—(1) Subject to the provisions of the next following subsection, every man enlisted under this Act shall be enlisted to serve for such a period as may be prescribed, not exceeding four years, reckoned from the date of his attestation. Term of service.

(2) A man enlisted under this Act, being a man who—

- (a) has entered into an engagement such as is mentioned in subsection (1) of section two of the National Service Act, 1948, to be enlisted into the Territorial Army or the Royal Auxiliary Air Force, or
- (b) during his service in pursuance of a similar engagement to be entered or enlisted in some other auxiliary force, is transferred to the Territorial Army or the Royal Auxiliary Air Force under section three of the said Act of 1948,

shall be enlisted for the term for which he so engaged to be entered or enlisted, or, if that term is partly expired, for the unexpired part thereof.

(3) A man of the Territorial Army or the Royal Auxiliary Air Force shall, until duly discharged in the prescribed manner, remain subject to this Act as a man of that Army or that Force, as the case may be.

15. A man enlisted under this Act in the Territorial Army or in the Royal Auxiliary Air Force may be re-engaged within the period of twelve months expiring with the end of his current term of service for such a period as may be prescribed, not exceeding four years from the end of that term, and on that re-engagement shall make the prescribed declaration before a justice of the peace or an officer, and so from time to time. Re-engagement for service.

16.—(1) Subject to any directions which may be given by Her Majesty, first appointments to the lowest rank of officer in the Territorial Army or the Royal Auxiliary Air Force shall be given to persons recommended by the president of the appropriate association if— First appointments to lowest rank of officers.

- (a) a person approved by Her Majesty is recommended by the president for such an appointment within thirty days after notice of a vacancy for the appointment has been given to the president in the prescribed manner; and

(b) that person fulfils all the prescribed conditions as to age, physical fitness and educational qualifications.

(2) In this section the expression "the appropriate association" means, in relation to the appointment of any person, the association administering the unit in which that person is to serve, or, if the unit is administered by more than one association, then the association administering the part of the unit in which he is to serve.

Discharge.

17.—(1) A man of the Territorial Army or of the Royal Auxiliary Air Force shall, save as hereinafter provided, be entitled to be discharged before the end of his current term of service on complying with the following conditions:—

- (i) giving to his commanding officer three months' notice in writing, or such less notice as may be prescribed, of his desire to be discharged; and
- (ii) paying for the use of the association administering the unit in which he is serving, or, if the unit is administered by more than one association, the association administering the part thereof in which he is serving, such sum as may be prescribed not exceeding five pounds; and
- (iii) delivering up in good order, fair wear and tear only excepted, all arms, clothing and appointments, being public property issued to him, or, in cases where for any good or sufficient cause the delivery of the property aforesaid is impossible, paying the value thereof:

Provided that it shall be lawful for the said association, or for any officer authorised by the said association, in any case in which it appears that the reasons for which the discharge is claimed are of sufficient urgency or weight, to dispense either wholly or in part with all or any of the above conditions.

(2) A man of the Territorial Army or of the Royal Auxiliary Air Force may be discharged by his commanding officer for disobedience to orders by him while doing any military or air force duty, as the case may be, or for neglect of such duty, or for misconduct by him as a man of the Territorial Army or of the Royal Auxiliary Air Force, as the case may be, or for other sufficient cause, the existence and sufficiency of such cause to be judged by the commanding officer:

Provided that a man so discharged shall be entitled to appeal to the Army Council or to the Air Council, as the case may be, who may give such directions in any such case as they may think just and proper.

(3) This section shall not apply to a man serving for a term of part-time service within the meaning of Part I of the National Service Act, 1948.

18.—(1) Where the time at which a man of the Territorial Army or the Royal Auxiliary Air Force would otherwise be entitled to be discharged occurs during a period of emergency, he may be required to prolong his service for such further term, not exceeding twelve months, as the competent military or, as the case may be, air force authority may order.

Postponement
of discharge
during an
emergency.

(2) A man shall not during a period of emergency be entitled to be discharged under subsection (1) of the last foregoing section.

(3) In this section the expression “period of emergency” means—

(a) in relation to a man of the Territorial Army, any period while a proclamation is in force ordering the army reserve to be called out on permanent service;

(b) in relation to a man of the Royal Auxiliary Air Force, any period while a proclamation is in force ordering the air force reserve to be called out on permanent service or any period while the man in question is called out for home defence service.

Training

19.—(1) Every man of the Territorial Army or of the Royal Auxiliary Air Force shall, by way of preliminary training during the first year of his original enlistment,—

Preliminary
training of
recruits.

(a) if so provided by Order in Council, be trained at such places within the United Kingdom, at such times, and for such periods not exceeding in the whole the number of days specified by the Order in Council as may be prescribed, and may for that purpose be called out once or oftener; and

(b) whether such an Order in Council has been made or not, attend the number of drills and fulfil the other conditions prescribed for a recruit of his arm or branch of the Territorial Army, or, as the case may be, attend the number of drills and instructional parades and fulfil the other conditions prescribed for a recruit in the Royal Auxiliary Air Force.

(2) The requirements relating to preliminary training imposed by this section shall be in addition to the requirements relating to annual training imposed by this Act.

20.—(1) Subject to the provisions of this section, every man of the Territorial Army or the Royal Auxiliary Air Force shall by way of annual training be trained for not less than eight nor more than fifteen days in every year at such times and at such places within the United Kingdom as may be prescribed,

Annual
training.

and may for that purpose be called out once or oftener in every year.

(2) Subject to the provisions of this section, every such man shall attend the number of drills and fulfil the other conditions relating to training prescribed for his arm or branch of the Territorial Army or, as the case may be, attend the number of drills and instructional parades and fulfil the other conditions relating to training prescribed for the Royal Auxiliary Air Force.

(3) In the application of subsection (1) of this section to the mounted branch of the Territorial Army, for the limit of fifteen days there shall be substituted a limit of eighteen days.

(4) The requirements of this section may be dispensed with in whole or in part—

(a) as respects any unit of the Territorial Army, by the prescribed general officer, and as respects an individual man of the Territorial Army, by his commanding officer subject to any general directions of the prescribed general officer ;

(b) as respects any unit of the Royal Auxiliary Air Force, by the prescribed air officer, and as respects an individual man of the Royal Auxiliary Air Force, by his commanding officer subject to any general directions of the prescribed air officer.

(5) Her Majesty may by Order in Council made in relation to all or any part of the Territorial Army or all or any part of the Royal Auxiliary Air Force direct—

(a) that the period of annual training in any year shall be extended to such period not exceeding thirty days as may be specified in the Order ; or

(b) that the period of annual training in any year shall be reduced to such period as to Her Majesty may seem fit ; or

(c) that the annual training in any year shall be dispensed with.

Training of
part-time
service men.

21. The two last foregoing sections shall not apply to a man serving for a term of part-time service within the meaning of Part I of the National Service Act, 1948, but any such man shall perform such training as he may from time to time be required to undergo under the said Part I.

Voluntary
training.

22. Nothing in the two last foregoing sections shall be construed as preventing a man with his own consent, in addition to any other training, being called up for the purpose of duty or instruction in accordance with orders and regulations under this Act.

Mobilisation

23.—(1) Immediately upon and by virtue of the issue of a **Embodiment**, proclamation ordering the army reserve to be called out on permanent service, it shall be lawful for Her Majesty to order the Army Council from time to time to give, and when given to revoke or vary, such directions as may seem necessary or proper for embodying all or any part of the Territorial Army, and in particular to make such special arrangements as they think proper with regard to units or individuals whose services may be required in other than a military capacity.

(2) Where under any such proclamation directions have been issued for calling out all the men belonging to the first class of the army reserve, the Army Council shall within one month after such directions have been issued issue directions for embodying all the men belonging to the Territorial Army, unless an address has been presented to Her Majesty by both Houses of Parliament praying that such directions for the embodiment of the men of the Territorial Army shall not be issued.

(3) Directions shall not unless the emergency so requires be given in compliance with the last foregoing subsection until each House of Parliament has had an opportunity of presenting such an address as is mentioned in that subsection.

(4) The foregoing subsections shall have effect in relation to the Royal Auxiliary Air Force with the substitution of references thereto and to the Air Council and an air force capacity for references to the Territorial Army and to the Army Council and a military capacity respectively and with the substitution of references to the air force reserve for references to the army reserve and to the first class thereof.

(5) Whenever, in consequence of the calling out of the whole of the first class of the army reserve or in consequence of the calling out of the whole of the air force reserve, directions are required under this section to be given for embodying the Territorial Army or the Royal Auxiliary Air Force, if Parliament is at that time adjourned or prorogued for any period which will not expire within ten days, a proclamation shall be issued for the meeting of Parliament within ten days and Parliament shall accordingly meet and sit upon the day appointed by such proclamation and shall continue to sit and act in like manner as if it had stood adjourned or prorogued to the same day.

(6) Where directions under this section for the time being direct the embodiment of any part of the Territorial Army or of the Royal Auxiliary Air Force every officer and man belonging to that part shall attend at the place and time fixed by those directions and after that time shall be deemed to be embodied; and such officers and men are in this Act referred to as embodied or as the embodied part or parts of the Territorial Army or of the Royal Auxiliary Air Force, as the case may be.

(7) An officer or man of the Territorial Army or the Royal Auxiliary Air Force shall while embodied be liable to serve in any place outside the United Kingdom and the Channel Islands:

Provided that this subsection shall not apply to any man in whose case it was agreed at the time of his enlistment that he was accepted for home service only.

Disembod-
ing.

24.—(1) It shall be lawful for Her Majesty by proclamation to order that the Territorial Army be disembodied, and thereupon the Army Council shall give such directions as may seem necessary or proper for carrying the proclamation into effect.

(2) Until any such proclamation of Her Majesty ordering that the Territorial Army be disembodied has been issued, the Army Council may from time to time as they may think expedient for the public service give such directions as may seem necessary or proper for disembodiment of any embodied part of the Territorial Army, and for embodying any part of the Territorial Army not embodied whether that part was previously embodied or not.

(3) After the date fixed by the directions for the disembodiment of any part of the Territorial Army the officers and men belonging to that part shall be in the position of officers and men of the Territorial Army when not embodied.

(4) The foregoing subsections shall have effect in relation to the Royal Auxiliary Air Force with the substitution of references thereto and to the Air Council for references to the Territorial Army and the Army Council respectively.

Calling-out
for home
defence service.

25.—(1) Subject to the provisions of this Act, every officer and man of the Territorial Army and of the Royal Auxiliary Air Force shall be liable to be called out for home defence service notwithstanding that the Territorial Army or the Royal Auxiliary Air Force, as the case may be, or the part thereof to which he belongs, has not been embodied.

(2) It shall be lawful for a Secretary of State, at any time when it appears to him that the occasion so requires, to give, and when given to revoke or vary, such directions as he may think fit for calling out for home defence service in accordance with the provisions of the foregoing subsection any officer or man of the Territorial Army or of the Royal Auxiliary Air Force who by virtue of those provisions is liable to be so called out; and every officer or man called out by the directions shall attend at the place and time appointed by the directions, and shall be deemed to be called out for home defence service at and after that time.

(3) Where a Secretary of State has given any directions under the last foregoing subsection, he may at any time thereafter give such directions as he may think fit for terminating the service under subsection (1) of this section of officers and men called out by the directions under the last foregoing subsection, but

without prejudice to the power of the Secretary of State, by further directions given under the last foregoing subsection to call out for further service any officer or man whose service has been terminated by directions given under this subsection.

(4) If, while an officer or man of the Territorial Army called out by directions given under subsection (2) of this section is serving under subsection (1) of this section, directions are given under this Act for embodying the Territorial Army or the part thereof in which he is serving, he shall thereupon be deemed to be embodied and his service under subsection (1) of this section shall cease.

This subsection shall have effect in relation to the Royal Auxiliary Air Force with the substitution of a reference thereto for the reference to the Territorial Army.

26.—(1) A man of the Territorial Army may, by order of the competent military authority,—

(a) at any time while the part of the Territorial Army to which he belongs is embodied, be posted without his consent to any unit within his corps or be transferred without his consent to any corps, and

Additional powers of transfer and posting while men are mobilised.

(b) at any time while he is serving under subsection (1) of the last foregoing section, be posted without his consent to any unit within his corps.

(2) A man of the Royal Auxiliary Air Force may, by order of the competent air force authority, at any time while the part of the Royal Auxiliary Air Force to which he belongs is embodied or at any time while he is serving under subsection (1) of the last foregoing section, be posted without his consent to any unit of Her Majesty's air forces.

(3) Where a man who has been transferred or posted by virtue of this section continues in territorial army or in auxiliary air force service, as the case may be, then if he so desires there shall, as soon as may be convenient after the end of the period of embodiment or, as the case may be, of the period of his service under subsection (1) of the last foregoing section, be taken all such steps as are necessary to enable him to serve again, in the case of territorial army service in the corps and unit, or, in the case of auxiliary air force service in the unit, in which he was serving at the time when he was first so transferred or posted.

(4) The last foregoing subsection shall apply to a man who, by virtue of subsection (4) of the last foregoing section, is deemed to be embodied as if the words "or, as the case may be, of the period of his service under subsection (1) of the last foregoing section" were omitted.

(5) Nothing in this section shall apply to men serving for a term of part-time service in accordance with the provisions of Part I of the National Service Act, 1948, or affect the transfer or posting of such men.

Offences

Failure to
attend on
embodiment
or on calling
out for home
defence
service.

27.—(1) Any man of the Territorial Army or of the Royal Auxiliary Air Force who without leave lawfully granted, or such sickness or other reasonable excuse as may be allowed in the prescribed manner—

- (a) fails to appear at the time and place appointed for assembling on embodiment in accordance with directions given under section twenty-three of this Act, or
- (b) fails to appear at the time and place appointed on his being called out for home defence service in accordance with directions given under subsection (2) of section twenty-five of this Act or under paragraph 2 of the Fourth Schedule to this Act,

shall be guilty, according to the circumstances, of desertion or absence without leave, and on conviction by court-martial shall be punishable as for an offence under section twelve or, as the case may be, section fifteen of the Army Act or of the Air Force Act, and may be taken into military or air force custody, as the case may be.

(2) Any person who, in the United Kingdom or elsewhere, by any means whatsoever—

- (a) procures or persuades any man of the Territorial Army or of the Royal Auxiliary Air Force to commit an offence of desertion contrary to subsection (1) of this section, or attempts to procure or persuade any such man to commit such an offence, or
- (b) knowing that any such man is about to commit such an offence aids or assists him in so doing, or
- (c) knowing any such man to be a deserter contrary to subsection (1) of this section conceals the man, or aids or assists him in concealing himself, or employs or continues to employ him, or aids or assists in his rescue,

shall be liable on summary conviction to a fine not exceeding thirty pounds or to imprisonment for a term not exceeding six months.

(3) Section one hundred and fifty-four of the Army Act, or of the Air Force Act, as the case may be, shall apply to a deserter or absentee without leave contrary to subsection (1) of this section as it applies to a deserter or absentee without leave within the meaning of that Act.

(4) Any person who, knowing any man of the Territorial Army or of the Royal Auxiliary Air Force to be a deserter within the meaning of the Army Act, or of the Air Force Act, as the case may be, employs or continues to employ the man shall be deemed to aid him in concealing himself within the meaning of paragraph (3) of section one hundred and fifty-three of that Act (which provides, among other things, for the punishment of persons concealing deserters from the regular forces).

(5) Where a man of the Territorial Army or of the Royal Auxiliary Air Force deserts contrary to subsection (1) of this section the time which elapsed between the time of his desertion and the time of his apprehension or voluntary surrender shall not be taken into account in reckoning his service for the purpose of discharge.

28. Where—

(a) a man of the Territorial Army or the Royal Auxiliary Air Force, without leave lawfully granted, or such sickness or other reasonable excuse as may be allowed in the prescribed manner, fails to appear at the time and place appointed for preliminary training or for annual training, or fails to attend the number of drills or instructional parades or to fulfil the other conditions relating to preliminary or annual training which may be prescribed ; or

Failure to fulfil training conditions.

(b) a man of the Territorial Army serving therein for a term of part-time service within the meaning of Part I of the National Service Act, 1948, fails to appear at the time and place appointed for any training which he is required to undergo under the said Part I or to perform such training for the period and in accordance with the other conditions laid down in respect thereof by the said Part I,

he shall be liable on summary conviction to a fine not exceeding five pounds:

Provided that where a man serving in the Territorial Army for a term of part-time service fails to comply with a training notice served upon him under section five of the National Service Act, 1948, he shall in respect of such failure be liable to be apprehended and punished as provided by subsection (4) of the said section five and accordingly the foregoing provisions of this section shall not apply to any such failure.

29.—(1) If any person designedly makes away with, sells, or pawns, or wrongfully destroys or damages, or negligently loses, anything issued to him as an officer or man of the Territorial Army or of the Royal Auxiliary Air Force, or wrongfully refuses or neglects to deliver up on demand anything issued to him as an officer or man of the Territorial Army or of the Royal Auxiliary Air Force, the value thereof shall be recoverable from him on complaint to a magistrates' court—

Wrongful sale, etc., of public property.

- (a) if he is serving in the Territorial Army or the Royal Auxiliary Air Force at the time when the complaint is made, by the association administering the unit in which he is serving, or, if the unit is administered by more than one association, then by the association administering the part thereof in which he is serving ;
- (b) if he is not serving in the Territorial Army or the Royal Auxiliary Air Force at the time aforesaid, by the asso-

ciation administering the unit in which he last served, or, if the unit is administered by more than one association, then by the association administering the part thereof in which he last served.

(2) Without prejudice to the provisions of the last foregoing subsection, any person who designedly makes away with, sells, pawns or wrongfully destroys, anything issued to him as afore-said shall be liable on summary conviction to a fine not exceeding five pounds.

(3) In the application of subsection (1) of this section to Scotland for the words "on complaint to a magistrates' court" there shall be substituted the words "on proceedings in any competent court" and for the words "at the time when the complaint is made" there shall be substituted the words "at the time when the proceedings are brought".

Enlistment
of men
discharged
with disgrace
from army,
air force or
navy or
contrary to
rules.

30.—(1) If a person—

- (a) having been discharged with disgrace from any part of Her Majesty's military or air forces or having been dismissed with disgrace from the navy, has afterwards enlisted in the Territorial Army or in the Royal Auxiliary Air Force without declaring the circumstances of his discharge or dismissal, or
- (b) while subject to military law or to the Air Force Act, is concerned in the enlistment for service in the Territorial Army or in the Royal Auxiliary Air Force, as the case may be, of any man when he knows or has reasonable cause to believe the man to be so circumstanced that by enlistment he commits an offence against the Army Act or the Air Force Act, as the case may be, or this Act, or
- (c) while subject to military law or to the Air Force Act, wilfully contravenes any enactments, orders or regulations which relate to the enlistment or attestation of men in the Territorial Army or the Royal Auxiliary Air Force, as the case may be,

he shall be guilty of an offence and shall, whether or not otherwise subject to military law or to the Air Force Act, be liable to be tried by court-martial and on conviction to suffer such punishment as is imposed for the like offence by sections thirty-two or thirty-four of the Army Act, if the case relates to enlistment or attestation in the Territorial Army, or by sections thirty-two or thirty-four of the Air Force Act, if the case relates to enlistment or attestation in the Royal Auxiliary Air Force, and may be taken into military or air force custody, as the case may be.

(2) For the purpose of this section the expression "discharged with disgrace" means discharged with ignominy, discharged for misconduct, or discharged on account of a conviction for felony or a sentence of penal servitude or imprisonment.

31.—(1) Any offence to which this subsection applies which is cognizable by a court-martial shall also be cognizable by a magistrates' court, and on conviction by such a court shall be punishable with imprisonment for a term not exceeding three months or with a fine not exceeding twenty pounds, or with both such imprisonment and fine. Trial of offences and application of penalties.

(2) The foregoing subsection applies to any offence under the Army Act if committed by a man of the Territorial Army when not embodied, any offence under the Air Force Act if committed by a man of the Royal Auxiliary Air Force when not called out for home defence service and not embodied, and any offence under this Act.

(3) Nothing in subsection (1) of this section shall affect the liability of a person charged with any offence to which that subsection applies to be taken into military or air force custody.

(4) Any offence which under this Act is punishable on conviction by court-martial shall for all purposes of and incidental to the arrest, trial and punishment of the offender, including the summary dealing with the case by any officer having power so to deal with the case, be deemed to be an offence under the Army Act (if the offence relates to a man of the Territorial Army) or under the Air Force Act (if the offence relates to a man of the Royal Auxiliary Air Force):

Provided that the said Acts shall in their application for the purposes of this subsection have effect with the substitution for any reference to forfeiture and stoppages of a reference to such forfeiture and stoppages as may be prescribed.

(5) Any offence which under this Act is punishable on summary conviction may be prosecuted, and any fine recoverable on such conviction may be recovered, in the manner provided by sections one hundred and sixty-six to one hundred and sixty-eight of the Army Act (if the offence relates to an officer or man of the Territorial Army) or of the Air Force Act (if the offence relates to an officer or man of the Royal Auxiliary Air Force), in like manner as if those sections were herein re-enacted and in terms made applicable to this Act, subject however to the following provisions, that is to say—

- (a) section twenty-seven of the Justices of the Peace Act, 1949 (which provides for the application of fines imposed by, and the payment of expenses of, magistrates' courts in England and Wales) shall have effect in relation to any fine imposed by such a court, or by a court of quarter sessions on appeal from such a court, on the conviction of any person for an offence which under this Act is punishable on summary conviction as if this subsection had been enacted before the passing of that Act;

- (b) every fine imposed under this Act on a man of the Territorial Army or the Royal Auxiliary Air Force otherwise than by a court in England or Wales and every fine recovered on a prosecution instituted under this Act otherwise than in such a court shall, notwithstanding anything in any Act or charter or in the said sections one hundred and sixty-six to one hundred and sixty-eight to the contrary, be paid to the association administering the unit in which the man is serving, or, if the unit is administered by more than one association, then to the association administering the part thereof in which he is serving.

(6) Proceedings against an offender before either a court-martial or an officer having power to deal with the case summarily, or a magistrates' court, in respect of an offence punishable under this Act and alleged to have been committed by him during his period of service in the Territorial Army or the Royal Auxiliary Air Force may be instituted whether the term of his service has or has not expired, and may, notwithstanding anything in any other Act, be instituted at any time within two months after the time at which the offence becomes known to his commanding officer, if the alleged offender is then apprehended, or, if he is not then apprehended, then within two months after the time at which he is apprehended :

Provided that nothing in the foregoing provisions of this subsection shall affect the limitation imposed by subsection (3) of section thirty-one of the National Service Act, 1948, as respects the time within which proceedings may be begun against a person for an offence under Part I of that Act.

(7) Where an offender has on several occasions been guilty of desertion, fraudulent enlistment, or making a false answer, he may for the purposes of any proceedings against him be deemed to belong to any one or more of the corps or units to which he has been appointed or transferred as well as to the corps or unit to which he properly belongs, and it shall be lawful to charge the offender with any number of the above-mentioned offences at the same time, whether they are offences within the meaning of the Army Act or the Air Force Act or offences within the meaning of this Act, and to give evidence of such offences against him, and, if he is convicted of more than one offence, to punish him accordingly as if he had been previously convicted of any such offence.

(8) In the application of this section to Scotland any reference to a magistrates' court shall be construed as a reference to the sheriff sitting as a court of summary jurisdiction.

Courts of
inquiry.

32. Where a man of the Territorial Army or of the Royal Auxiliary Air Force is subject to military law or, as the case may be, to the Air Force Act and is illegally absent from his

duty, a court of inquiry under section seventy-two of the Army Act or of the Air Force Act, as the case may be, may be assembled after the expiration of twenty-one days from the date of his absence, notwithstanding that the period during which the man was subject to military law or the Air Force Act is less than twenty-one days or has expired before the expiration of twenty-one days.

33.—(1) A person charged with an offence which under this Act is cognizable both by a court-martial and by a magistrates' court shall not be liable to be tried both by a court-martial and by a magistrates' court, but may be tried by either of them, as may be prescribed. Provisions as to offences triable both by court-martial and summarily.

(2) For the purposes of the foregoing subsection a man who has been dealt with summarily by any officer having power so to deal with the case shall be deemed to have been tried by court-martial.

(3) In the application of this section to Scotland any reference to a magistrates' court shall be construed as a reference to the sheriff sitting as a court of summary jurisdiction.

34.—(1) Section one hundred and sixty-three of the Army Act (which relates to evidence generally) shall apply to all proceedings under this Act relating to a man of the Territorial Army. Evidence.

(2) Section one hundred and sixty-four of the Army Act (which provides for the proof of the civil conviction or acquittal of a person subject to military law) shall apply to a man of the Territorial Army tried by a civil court, whether he is or is not at the time of that trial subject to military law.

(3) The foregoing provisions of this section shall apply to men of the Royal Auxiliary Air Force as they apply to men of the Territorial Army, with the substitution of references to the Air Force Act for references to the Army Act and military law.

Miscellaneous

35. If a man of the Territorial Army enlists into the army reserve without being discharged from the Territorial Army, or a man of the Royal Auxiliary Air Force enlists into the air force reserve without being discharged from the Royal Auxiliary Air Force, the terms and conditions of service applicable to men of the Territorial Army or of the Royal Auxiliary Air Force shall cease to apply to him while he remains in the army reserve or in the air force reserve, as the case may be. Enlistment into army reserve and air force reserve.

36.—(1) Any power or jurisdiction given to, and act or thing to be done by, to or before any person holding any military office may, in relation to the Territorial Army, be exercised by or done by, to or before any other person for the time being authorised in that behalf according to the custom of the service. Exercise of powers vested in holders of military and air force offices.

(2) The foregoing subsection shall apply in relation to the Royal Auxiliary Air Force as it applies in relation to the Territorial Army, with the substitution of a reference to air force office for the reference to military office.

(3) Where by this Act, or by any order or regulation in force thereunder, any order is authorised to be made by any military or air force authority, the order may be signified by an order, instruction or letter under the hand of any officer authorised to issue orders on behalf of that authority, and an order, instruction or letter purporting to be signed by any officer appearing therein to be so authorised shall be evidence of his being so authorised.

Exemption
from tolls.

37.—(1) For the purpose of section one hundred and forty-three of the Army Act and of other enactments relating to such duties, tolls and ferries as are mentioned in that section, officers and men belonging to the Territorial Army, when going to or returning from any place at which they are required to attend, and for non-attendance at which they are liable to be punished, shall be deemed to be officers and soldiers of the regular forces on duty.

(2) The foregoing subsection shall apply to the Royal Auxiliary Air Force as it applies to the Territorial Army, with the substitution of references to the Air Force Act, airmen and the regular air force for references to the Army Act, soldiers and the regular forces respectively.

Application of
enactments
relating to
Militia and
Volunteers.

38. Her Majesty may by Order in Council apply, with the necessary adaptations, to the Territorial Army or the Royal Auxiliary Air Force, or to the officers or men belonging thereto, any enactment passed before the second day of August, nineteen hundred and seven and in force at that date relating to the Militia or Volunteers, or officers or men of the Militia or Volunteers, other than enactments with respect to the raising, service, pay, discipline or government of the Militia or Volunteers.

Civil rights and
exemptions.

39.—(1) An officer or man of the Territorial Army or the Royal Auxiliary Air Force shall not be liable to any penalty or punishment for or on account of his absence during the time he is voting at any election of a member to serve in Parliament, or during the time he is going to or returning from such voting.

(2) While a sheriff—

(a) is an officer of the Territorial Army and is embodied,
or

(b) is an officer of the Royal Auxiliary Air Force and is embodied or called out for home defence service,

he shall be discharged from personally performing the office of sheriff, and the under-sheriff shall be answerable for the execution of the said office in the name of the high sheriff, and

the security given by the under-sheriff and his pledges to the high sheriff shall stand as a security to the Queen and to all persons whomsoever for the due performance of the office of sheriff during that time.

(3) An officer or man of the Territorial Army or the Royal Auxiliary Air Force shall not be compelled to serve as a peace officer or parish officer and shall be exempt from serving on any jury, and a field officer of the Territorial Army or an officer of the Royal Auxiliary Air Force not below the rank of squadron leader shall not be required to serve in the office of high sheriff:

Provided that a man who is serving in the Territorial Army for a term of part-time service within the meaning of Part I of the National Service Act, 1948, shall not by virtue of the foregoing provisions of this subsection, be exempted from serving on a jury during his term of part time service.

(4) In the application of this section to Scotland subsection (2) and the words in subsection (3) from "and a field officer" to "high sheriff" shall be omitted.

40. The proceeds of the Trophy Tax levied in the City of London may be applied by Her Majesty's Commissioners of the City of London if those Commissioners in their discretion see fit for the purposes of any of the powers and duties of an association established under this Act for the City of London.

General

41.—(1) Notices required in pursuance of this Act or of the orders and regulations in force thereunder to be given to men of the Territorial Army or of the Royal Auxiliary Air Force shall be served or published in such manner as may be prescribed and, if so served or published, shall be deemed to be sufficient notice.

(2) Every constable and other parish officer shall, when so required by or on behalf of the Army Council or the Air Council, conform with the orders and regulations for the time being in force under this Act with respect to the publication and service of notices, and in default shall be liable on summary conviction to a fine not exceeding twenty pounds.

(3) In the last foregoing subsection the expression "parish officer" means in an urban parish the clerk to the rating authority, in a rural parish having a parish council the chairman of the parish council, and in any other rural parish the chairman of the parish meeting.

(4) In the application of this section to Scotland subsection (3) and the words "and other parish officer" in subsection (2) shall be omitted.

Provisions
as to orders,
schemes and
regulations.

42.—(1) All Orders in Council, orders, schemes and regulations made under this Act (other than Orders in Council made under section nineteen or section twenty of this Act or the Fourth Schedule to this Act) shall be laid before both Houses of Parliament after being made.

(2) Every Order in Council or scheme required by the last foregoing subsection to be laid before each House of Parliament shall be so laid within forty days after it is made, if Parliament is then sitting, or, if not, within forty days after the commencement of the then next ensuing Session; and if an address is presented to Her Majesty by either House of Parliament within the next following forty days, praying that any such Order or scheme may be annulled, Her Majesty may thereupon by Order in Council annul it, and the Order or scheme so annulled shall thenceforth become void and of no effect, but without prejudice to the validity of any proceedings which may in the meantime have been taken under it.

(3) Before any Order in Council is made under section nineteen, or under paragraph (a) of subsection (5) of section twenty, of this Act the draft of the Order shall be laid before each House of Parliament for a period of not less than forty days during the session of Parliament, and, if either of those Houses before the expiration of those forty days presents an address to Her Majesty against the draft Order or any part thereof, no further proceedings shall be taken in respect of the Order, without prejudice to the making of a new draft Order.

(4) All Orders in Council, orders, schemes and regulations made under this Act may be varied or revoked by subsequent Orders in Council, orders, schemes or regulations made in the like manner and subject to the like conditions.

(5) For the purposes of the Statutory Instruments Act, 1946, this Act shall be deemed to be an Act passed before the commencement of that Act, and any reference in regulations made under subsection (1) of section eight of that Act to any provision of the Territorial and Reserve Forces Act, 1907, or to any provision of the Territorial and Reserve Forces Act, 1907, as applied to the Royal Auxiliary Air Force by the Auxiliary Air Force Order, 1924, shall, without prejudice to any power to vary or revoke the said regulations, be construed as a reference to the corresponding provision of this Act.

Interpretation.

43.—(1) In this Act the following expressions have the meanings hereby assigned to them respectively, that is to say—

“air force member” means a member of an association who is a member or former member of Her Majesty’s air forces or who is specially qualified by his interest in and knowledge of matters relating to aviation;

“competent air force authority” means the Air Council or an officer designated by the Air Council ;

“competent military authority” means the Army Council or an officer designated by the Army Council ;

“county” means a county or riding of a county for which a lieutenant is appointed, and includes the City of London ; and each county of a city or county of a town mentioned in the first column of Part I or Part III of the Third Schedule to this Act shall be deemed to form part of the county set opposite thereto in the second column of that Schedule ;

“home defence service” means actual military or air force service in any place in the United Kingdom or the Channel Islands in defence of the United Kingdom or the Channel Islands against actual or apprehended attack ;

“magistrates’ court” has the same meaning as in subsection (1) of section one hundred and twenty-four of the Magistrates’ Courts Act, 1952 ;

“man of the Royal Auxiliary Air Force” includes a warrant officer and a non-commissioned officer ;

“man of the Territorial Army” includes a warrant officer and a non-commissioned officer ;

“military member” means a member of an association who is a member or former member of Her Majesty’s military forces ;

“prescribed” means prescribed by orders or regulations made under this Act ;

and other expressions relating to the Territorial Army or to the Royal Auxiliary Air Force have the same meanings as in the Army Act or the Air Force Act, as the case may be.

(2) For the purposes of subsection (3) of section one and subsection (7) of section twenty-three of this Act and of the definition of “home defence service” in subsection (1) of this section, service on any flight of which the point of departure is within the boundaries of the United Kingdom or the Channel Islands or of the territorial waters of the United Kingdom or of those islands, and of which the point of intended return is within the said boundaries, shall be deemed to be service within the United Kingdom and the Channel Islands, notwithstanding that the flight may in its course extend beyond those boundaries.

(3) This Act shall apply in relation to women as it applies in relation to men.

Repeals, and
revocation
of Orders
in Council.

44.—(1) The enactments specified in the second column of Part I of the Fifth Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule.

(2) The Orders in Council specified in the second column of Part II of the said Schedule shall be revoked to the extent specified in the third column of that Part of that Schedule.

Saving for
powers to
make Orders
in Council.

45.—(1) The foregoing provisions of this Act shall not affect the power of Her Majesty, under the enactments mentioned in subsection (3) of this section, by Order in Council to apply with adaptations and modifications to the Royal Auxiliary Air Force or to the officers and men of that Force, or to both the Royal Auxiliary Air Force and the officers and men of that Force and to the Territorial Army and the officers and men of that Army, enactments relating to the Territorial Army or the officers and men of that Army, or to make by such Order in Council such supplemental and consequential provisions as are authorised by any of the enactments mentioned in subsection (3) of this section.

(2) Any Order in Council made under the said power may vary or revoke any provision of this Act which is a provision reproduced from any of the Orders revoked by subsection (2) of the last foregoing section to the like extent as if that provision were contained in an Order in Council made under the said power.

(3) The empowering enactments referred to in subsection (1) of this section are the following, that is to say:—

subsection (2) of section six of the Air Force (Constitution) Act, 1917, so far as it relates to the Royal Auxiliary Air Force;

sections one and two of the Auxiliary Air Force and Air Force Reserve Act, 1924, and section four of that Act so far as it relates to the Royal Auxiliary Air Force;

section seven of the Auxiliary and Reserve Forces Act, 1949, and subsection (1) of section sixteen of that Act so far as it relates to the Royal Auxiliary Air Force.

Transitional
provisions
and general
savings.

46.—(1) In the case of—

(a) officers and men of the Territorial Army being officers other than those who accepted commissions in the Territorial Army on or after the sixteenth day of December, nineteen hundred and forty-nine, and men other than those who entered the Territorial Army (whether on being enlisted or on being deemed to be enlisted or on being re-engaged therein) on or after that date, and

(b) officers and men of the Royal Auxiliary Air Force being officers other than those who accepted commissions in

the Royal Auxiliary Air Force on or after the twenty-sixth day of May, nineteen hundred and fifty, and men other than those who entered the Royal Auxiliary Air Force (whether on being enlisted or on being deemed to be enlisted or on being re-engaged therein) on or after that date,

the provisions of subsection (3) of section one, subsection (7) of section twenty-three, section twenty-five and section twenty-six of this Act shall not have effect, but the provisions of the Fourth Schedule to this Act shall have effect instead.

(2) Nothing in this Act shall affect any Order in Council, order, scheme or regulation made or any other thing done under or by virtue of an enactment repealed or Order in Council revoked by this Act, but any Order in Council, order, scheme or regulation so made, or thing so done, shall, if in force at the commencement of this Act, and so far as it could have been made or done under or by virtue of the corresponding provision of this Act, have effect as if it had been made or done under or by virtue of that corresponding provision.

(3) Any document referring to any Act or enactment repealed by this Act shall be construed as referring to this Act or the corresponding enactment in this Act.

(4) This Act, except the following provisions thereof, that is to say—

subsection (3) of section one,
section thirteen,
subsection (7) of section twenty-three,
section twenty-five, and
section twenty-six,

shall be included among the enactments in relation to which Her Majesty has power to make Orders in Council under subsection (1) of section twenty-six, and subsection (1) of section thirty-two, of the National Service Act, 1948 (which provide for the making of Orders in Council modifying enactments relating to the length or conditions of service of men in the armed forces of the Crown in the application of such enactments to men called up under that Act, and for the making of Orders in Council modifying enactments relating to consequential matters).

(5) Nothing in the foregoing provisions of this section shall be taken as prejudicing the operation of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

(6) The provisions of this Act shall have effect subject to the provisions of the following enactments, so long as those enactments are in operation, that is to say, the Armed Forces (Conditions of Service) Act, 1939, the Military and Air Forces

(Prolongation of Service) Act, 1939, and the Reserve and Auxiliary Forces (Training) Act, 1951.

Application
to counties
of cities in
Scotland.

47. This Act shall apply to a county of a city in Scotland in like manner as to any other county, provided that on the representation or with the consent of the council of any such county of a city it shall be lawful for Her Majesty, by order signified under the hand of a Secretary of State, to declare that such county of a city shall for the purposes of this Act be deemed to form part of the county set opposite thereto in the second column of Part II of the Third Schedule to this Act and to provide for all matters which may appear necessary or proper for giving full effect to the order.

Application to
Northern
Ireland.

48. In the application of this Act to Northern Ireland the following expressions have the following meanings respectively—

“magistrates’ court” means a court of summary jurisdiction constituted in accordance with the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction;

“summary conviction” means conviction in accordance with the enactments (including enactments of the Parliament of Northern Ireland) for the time being in force in Northern Ireland relating to summary jurisdiction.

Provisions
as to the
Isle of Man.

49.—(1) References in this Act to the United Kingdom shall be construed as including the Isle of Man.

(2) This Act shall apply to the Isle of Man subject to the following modifications:—

- (a) the Isle of Man shall be deemed to be a separate county;
- (b) references to the Lieutenant Governor of the Isle of Man shall be substituted for references to the lieutenant of a county;
- (c) references to a court of summary jurisdiction and to conviction by such a court shall be substituted for references to a magistrates’ court and to summary conviction;
- (d) a reference to the Tynwald Court shall be substituted for the reference to Parliament in section thirty-nine of this Act.

Short title
and com-
mencement.

50.—(1) This Act may be cited as the Auxiliary Forces Act, 1953.

(2) This Act shall come into force on the first day of January, nineteen hundred and fifty-four.

SCHEDULES

FIRST SCHEDULE

Section 3.

PROVISIONS OF SCHEMES FOR THE CONSTITUTION OF ASSOCIATIONS

1. A scheme for the constitution of an association shall provide—

(a) for the date of the establishment of the association :

(b) for the incorporation of the association by an appropriate name, with power to hold land for the purposes of this Act without licence in mortmain :

(c) if the association is established for one county, for constituting the lieutenant of that county, or failing him such other person as the authority making the scheme thinks fit, president of the association :

(d) if the association is established for two or more counties, for constituting the lieutenant of such one of those counties as the said authority may from time to time think fit or, failing any of those lieutenants, such other person as that authority may think fit, president of the association, and for constituting vice-president of the association the lieutenant of any of those counties in any case where he is not president of the association and is willing to act as vice-president :

(e) for the appointment as members of the association—

(i) in the case of a joint association, of such number as may be specified in the scheme of military members and of such number as may be so specified of air force members, the aggregate of the said numbers not being less than half of the whole number of the association,

(ii) in the case of a territorial army association, of such number of military members as may be specified in the scheme, and, in the case of an auxiliary air force association, of such number of air force members as may be so specified, not being in either case less than one half of the whole number of the association :

(f) for the appointment by the authority making the scheme, where it appears desirable, and after consultation with, and on the recommendation of, the bodies to be represented,—

(i) of representatives of the councils of administrative counties and county boroughs wholly or partly within the area for which the association is established (including, if that area consists of or comprises the City of London, representatives of the Common Council of the City) ;

(ii) of representatives of the councils of county districts within that area or, if that area consists of or comprises the county of London, representatives of metropolitan borough councils ;

(iii) of a representative of the council of each administrative county wholly or partly within that area in its capacity as local education authority, in addition to representatives of that county council appointed under head (i) of this sub-paragraph ;

1ST SCH.
—cont.

- (iv) if that area consists of or comprises a county for the whole or any part of which a joint education board is constituted as the local education authority, of a representative of that board ;
- (v) of representatives of universities whose activities are carried on wholly or partly within that area :
- (g) for the appointment as members of the association, by the authority making the scheme, of such number of persons as may be specified in the scheme as representing the Army Cadet Force and the Air Training Corps in the case of a joint association, the Army Cadet Force in the case of a territorial army association, the Air Training Corps in the case of an auxiliary air force association, and the Combined Cadet Force and the Sea Cadet Corps in the case of any association :
- (h) for the appointment as members of the association, by the authority making the scheme, of such number of persons as may be specified in the scheme as representing employers in, and persons employed in, the area for which the association is established :
- (i) for the appointment of such number of co-opted members as may be specified in the scheme :
- (j) for the mode of appointment, term of office and rotation of members of the association and the filling of casual vacancies :
- (k) for the election of a chairman and vice-chairman by the association and for defining their powers and duties :
- (l) for the appointment by the association, subject to the approval of the authority making the scheme, of a secretary and other officers of the association and for the accountability of such officers, and for the provision of offices :
- (m) for the procedure to be adopted, including the appointment of committees and the delegation to committees of any of the powers or duties of the association :
- (n) for enabling the following, or officers deputed by them, to attend the meetings of the association, and to speak but not to vote, namely, general or air officers specified in the scheme who are not members of the association, being—
- (i) in the case of a joint association, general or air officers of any part of Her Majesty's forces ;
 - (ii) in the case of a territorial army association, general officers of any part of Her Majesty's military forces ;
 - (iii) in the case of an auxiliary air force association, air officers of any part of Her Majesty's air forces :
- (o) for dividing the area for which the association is established, where on account of its size or population it seems desirable so to do, into two or more parts and for constituting sub-associations for the several parts and for apportioning amongst the several sub-associations all or any of the powers and duties of the association and regulating the relations of the sub-associations to the association and to one another.

2. Any scheme relating to a joint association may provide for the election of two vice-chairmen and shall provide that of the chairman

and the vice-chairman or vice-chairmen at least one shall be a military member of the association and at least one shall be an air force member of the association.

1ST SCH.
—cont.

3. A scheme may contain any consequential, supplemental, or transitory provisions which may appear to be necessary or proper for the purposes of the scheme, and also as respects any matter for which provision may be made by regulations under this Act and for which it appears desirable to make special provision affecting the association established by the scheme.

4.—(1) A scheme for the constitution of an association established for the county of Kent or for the county of Sussex, or for an area including either or both of those counties, may provide that the Lord Warden of the Cinque Ports shall *ex officio* be a member of the association.

(2) A scheme for the constitution of an association established for the county of Cornwall or for the county of Devon, or for an area including either or both of those counties, may provide that the Warden of the Stannaries shall *ex officio* be a member of the association.

(3) The Governor or Deputy Governor of the Isle of Wight shall *ex officio* be a member of an association established for the county of Southampton or for an area including the county of Southampton.

(4) The Lord Mayor of the City of London shall—

(a) *ex officio* be president of an association established for the City of London,

(b) in relation to an association established for the City of London and one or more other counties be deemed, for the purposes of the application of sub-paragraph (d) of paragraph 1 of this Schedule, to be the lieutenant of a county.

5. In the application of this Schedule to Scotland—

(a) the reference in sub-paragraph (b) of paragraph 1 to licence in mortmain shall be omitted ;

(b) for heads (i) to (iv) of sub-paragraph (f) of paragraph 1 there shall be substituted the following heads:—

“ (i) of representatives of the councils of counties and large burghs within the area for which the association is established ;

(ii) of representatives of the councils of small burghs and districts within that area ;

(iii) of a representative of the council of any county within that area in its capacity as education authority, in addition to representatives of that council appointed under head (i) of this sub-paragraph ;

(iv) of a representative of a joint county council in its capacity as education authority for counties combined for the purposes of subsection (1) of section one hundred and eighteen of the Local Government (Scotland) Act, 1947, in addition to representatives of the council of any of the separate counties of the combination appointed under head (i) of this sub-paragraph ” ;

(c) the expressions “ large burgh ” and “ small burgh ” have the same meanings as in the Local Government (Scotland) Act, 1947.

SECOND SCHEDULE

Section 12.

APPLICATION OF PROVISIONS OF ARMY ACT AND AIR FORCE ACT
RELATING TO ENLISTMENT

1. The provisions of the Army Act referred to in subsection (2) of section twelve of this Act are the following, that is to say—
 - section eighty-one (which relates to the mode of enlistment and attestation),
 - section ninety-six (which relates to the claims of masters to apprentices),
 - section ninety-eight (which provides for punishing unlawful recruiting),
 - section ninety-nine (which provides for punishing recruits for false answers),
 - so much of section one hundred as relates to the validity of attestation and enlistment,
 - section one hundred and one (which relates to the competent military authority), and
 - so much of section one hundred and sixty-three as relates to an attestation paper, or a copy thereof, or a declaration, being evidence.
2. The modifications of the Army Act referred to in subsection (2) of section twelve of this Act are the following, that is to say—
 - for references to the regular forces there shall be substituted references to the Territorial Army,
 - for references to a soldier there shall be substituted references to a man of the Territorial Army,
 - in section one hundred, in subsection (1), for the words from the beginning to the word “attestation”, in the second place where it occurs, there shall be substituted the words “Where a person after his attestation on his enlistment or the making of his declaration on re-engagement has not, within three months, claimed his discharge on any ground on which he is entitled under this subsection to do so, he shall be deemed to have been duly attested and enlisted or duly re-engaged, as the case may be, and shall not be entitled to claim his discharge on the ground of any error or illegality in his enlistment, attestation or re-engagement”, and, in subsection (3), for the words “he has not been attested or not duly attested” there shall be substituted the words “he has not been attested or re-engaged or not duly attested or re-engaged”, and
 - in section one hundred and sixty-three, in paragraph (a) of subsection (1), for the words “upon any enrolment in any branch of Her Majesty’s service” there shall be substituted the words “upon his re-engagement in the Territorial Army”.
3. The provisions of the Air Force Act referred to in subsection (2) of section twelve of this Act are the following, that is to say—
 - section eighty (which relates to the mode of enlistment and attestation),
 - section ninety-six (which relates to the claims of masters to apprentices),

section ninety-eight (which provides for punishing unlawful recruiting),

section ninety-nine (which provides for punishing recruits for false answers),

so much of section one hundred as relates to the validity of attestation and enlistment or re-engagement,

section one hundred and one (which relates to the competent air force authority), and

so much of section one hundred and sixty-three as relates to an attestation paper, or a copy thereof or a declaration, being evidence.

4. The modifications of the Air Force Act referred to in subsection (2) of section twelve of this Act are the following, that is to say—

for references to the regular air force there shall be substituted references to the Royal Auxiliary Air Force,

for references to an airman there shall be substituted references to a man of the Royal Auxiliary Air Force, and

in section one hundred, in subsection (1), for the words “has received pay as an airman of the regular air force during three months” there shall be substituted the words “has not within three months claimed his discharge on any ground on which he is entitled under this subsection to do so”.

2ND SCH.
—cont.

THIRD SCHEDULE

Sections 43, 47.

COUNTIES OF WHICH CERTAIN CITIES AND TOWNS ARE DEEMED TO FORM PART

PART I

ENGLAND AND WALES

<i>Name of City or Town</i>		<i>County</i>
County of the city of Chester		Chester.
County of the city of Exeter		Devon.
County of the town of Poole		Dorset.
County of the city of Gloucester		Gloucester.
County of the city of Bristol ...		Gloucester.
County of the city of Canterbury		Kent.
County of the city of Lincoln		Lincoln.
County of the city of Norwich		Norfolk.
County of the town of Newcastle-upon-Tyne	...	Northumberland.
Borough and town of Berwick-upon-Tweed...	...	Northumberland.
County of the town of Nottingham		Nottingham.
County of the town of Southampton		Southampton.
County of the city of Lichfield		Stafford.
County of the city of Worcester		Worcester.
County of the city of York		West Riding of York.
County of the town of Kingston-upon-Hull...	...	East Riding of York.
County of the town of Carmarthen		Carmarthen.
County of the town of Haverfordwest		Pembroke.

3RD SCH.
—cont.PART II
SCOTLAND

County of the city of Edinburgh	...	...	Midlothian.
County of the city of Glasgow	...	...	Lanark.
County of the city of Dundee	...	...	Angus.
County of the city of Aberdeen	...	...	Aberdeen.

PART III

NORTHERN IRELAND

County of the town of Londonderry...	...	Londonderry.
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Section 46.

FOURTH SCHEDULE

TRANSITIONAL PROVISIONS AS TO THE CONDITIONS OF SERVICE OF
CERTAIN OFFICERS AND MEN

1.—(1) This paragraph applies to officers and men of the Territorial Army being officers other than those who accepted commissions in the Territorial Army on or after the sixteenth day of December, nineteen hundred and forty-nine, and men other than those who entered the Territorial Army (whether on being enlisted or on being deemed to be enlisted or on being re-engaged therein) on or after that date.

(2) Subject to the provisions of this paragraph, officers and men of the Territorial Army to whom this paragraph applies shall be liable to serve in any part of the United Kingdom but shall not be liable to be sent or ordered to go out of the United Kingdom:

Provided that it shall be lawful for Her Majesty, if she thinks fit, to accept the offer of any such officers or men of the Territorial Army, signified through their commanding officer, to subject themselves to the liability—

- (a) to serve in any place outside the United Kingdom ; or
- (b) to be called out for actual military service for purposes of defence at such places in the United Kingdom as may be specified in their agreement, whether the Territorial Army is embodied or not ;

and, upon any such offer being accepted they shall be liable, whenever required during the period to which the offer extends, to serve or be called out accordingly.

2.—(1) This paragraph applies to officers and men of the Royal Auxiliary Air Force being officers other than those who accepted commissions in the Royal Auxiliary Air Force on or after the twenty-sixth day of May, nineteen hundred and fifty, and men other than those who entered the Royal Auxiliary Air Force (whether on being enlisted or on being deemed to be enlisted or on being re-engaged therein) on or after that date.

(2) Subject to the provisions of this paragraph, officers and men of the Royal Auxiliary Air Force to whom this paragraph applies

shall be liable to serve in any part of the United Kingdom but shall not be liable to be sent or ordered to go out of the United Kingdom:

4TH SCH.
—cont.

Provided that it shall be lawful for Her Majesty, if she thinks fit, to accept the offer of any such officers or men of the Royal Auxiliary Air Force, signified through their commanding officer, to subject themselves to the liability to serve in any place outside the United Kingdom and upon any such offer being accepted they shall be liable, whenever required during the period to which the offer extends, to serve accordingly.

(3) Notwithstanding anything in the last foregoing sub-paragraph, officers and men of the Royal Auxiliary Air Force to whom this paragraph applies and who have entered into an agreement to accept as an obligation the liability, whether or not the army or air force reserve is called out on permanent service, to be called out for home defence service shall be liable to be called out accordingly.

(4) It shall be lawful for Her Majesty by Order in Council declaring that a state of emergency exists, to order a Secretary of State to give, and when given to revoke or vary, such directions as may seem necessary or proper for calling out for home defence service all or any of the officers and men who by virtue of the last foregoing sub-paragraph are liable to be called out for such service.

(5) Every officer and man for the time being called out by directions under the last foregoing sub-paragraph shall attend at the place and time fixed by those directions.

(6) It shall be lawful for Her Majesty by Order in Council to declare that a state of emergency no longer exists, and thereupon the Secretary of State shall give such directions as may seem necessary or proper for terminating the service under sub-paragraph (4) of this paragraph of the officers and men of the Royal Auxiliary Air Force called out thereunder.

(7) Until any such Order in Council as is mentioned in the last foregoing sub-paragraph has been made, the Secretary of State may from time to time, as he may think expedient for the public service, give such directions as may seem necessary or proper for dispensing with the service under sub-paragraph (4) of this paragraph of any officers and men of the Royal Auxiliary Air Force and for calling out any officers or men of that force to serve under that sub-paragraph whether or not their service thereunder has been previously dispensed with.

3. A person shall not be compelled to make such an offer as is referred to in sub-paragraph (2) of paragraph 1, or in sub-paragraph (2) of paragraph 2, of this Schedule, or be subject to such liability as would result from making such an offer, unless that person makes the offer or subjects himself to the liability by his own consent, and a commanding officer shall not certify any voluntary offer until he has explained to the person making it that it is to be a purely voluntary offer on the part of that person.

Section 44.

FIFTH SCHEDULE

REPEALS

PART I

Enactments repealed

Session and Chapter	Short Title	Extent of Repeal
7 Edw. 7. c. 9.	The Territorial and Reserve Forces Act, 1907.	The whole Act, except subsection (1) of section twenty-three, subsection (1) of section twenty-eight, sections thirty-six and forty-one, and the First Schedule.
7 & 8 Geo. 5. c. 51.	The Air Force (Constitution) Act, 1917.	In section six, subsection (1).
11 & 12 Geo. 5. c. 37.	The Territorial Army and Militia Act, 1921.	Section one.
14 & 15 Geo. 5. c. 15.	The Auxiliary Air Force and Air Force Reserve Act, 1924.	Section five.
11 & 12 Geo. 6. c. 64.	The National Service Act, 1948.	In section twenty-six, subsection (5).
12, 13 & 14 Geo. 6. c. 96.	The Auxiliary and Reserve Forces Act, 1949.	Sections one to six; section seventeen so far as it relates to the Territorial Army; in section eighteen, subsection (2); and the First Schedule so far as it relates to the Territorial and Reserve Forces Act, 1907.

PART II

Orders in Council revoked

Reference	Title	Extent of revocation
S.R. & O. 1924 No. 1212.	The Auxiliary Air Force Order, 1924.	The whole Order, except so far as it applies subsection (1) of section twenty-three of the Territorial and Reserve Forces Act, 1907, to the Royal Auxiliary Air Force.
S.R. & O. 1927 No. 1081.	The Auxiliary Air Force Order, 1927.	The whole Order.
S.I. 1949 No. 1844.	The National Service (Adaptation of Enactments) (Military and Air Forces) Order, 1949.	In Part II of the Schedule to the Order, paragraphs 11 to 18.
S.I. 1950 No. 834.	The Royal Auxiliary Air Force Order, 1950.	The whole Order.
S.I. 1950 No. 1043.	The Royal Auxiliary Air Force (No. 2) Order, 1950.	The whole Order.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Territorial and Reserve Forces Act, 1907 ...	7 Edw. 7. c. 9.
Air Force (Constitution) Act, 1917	7 & 8 Geo. 5. c. 51.
Auxiliary Air Force and Air Force Reserve Act, 1924	14 & 15 Geo. 5. c. 15.
Armed Forces (Conditions of Service) Act, 1939	2 & 3 Geo. 6. c. 68.
Military and Air Forces (Prolongation of Service) Act, 1939	2 & 3 Geo. 6. c. 90.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Local Government (Scotland) Act, 1947... ..	10 & 11 Geo. 6. c. 43.
National Service Act, 1948	11 & 12 Geo. 6. c. 64.
Consolidation of Enactments (Procedure) Act, 1949	12, 13 & 14 Geo. 6. c. 33.
Auxiliary and Reserve Forces Act, 1949... ..	12, 13 & 14 Geo. 6. c. 96.
Justices of the Peace Act, 1949	12, 13 & 14 Geo. 6. c. 101.
Reserve and Auxiliary Forces (Training) Act, 1951	14 & 15 Geo. 6. c. 23.
Magistrates' Courts Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 55.

CHAPTER 51

Monopolies and Restrictive Practices Commission Act, 1953

Section

ARRANGEMENT OF SECTIONS

1. Chairman and deputy chairmen of Commission.
2. Exercise of functions of Commission by groups of members.
3. Expenses.
4. Short title, citation and construction.

SCHEDULES:

First Schedule.—Pensions and Other Benefits for Chairman and Deputy Chairmen of Commission.

Second Schedule.—Supplementary Provisions relating to s. 2.

An Act to make provision for a chairman and deputy chairmen of the Monopolies and Restrictive Practices Commission, and for the tenure of office and superannuation benefits of the chairman and deputy chairmen thereof; to enable functions of the Commission to be exercised by groups of its members; and for purposes connected with the matters aforesaid.

[29th October 1953.]